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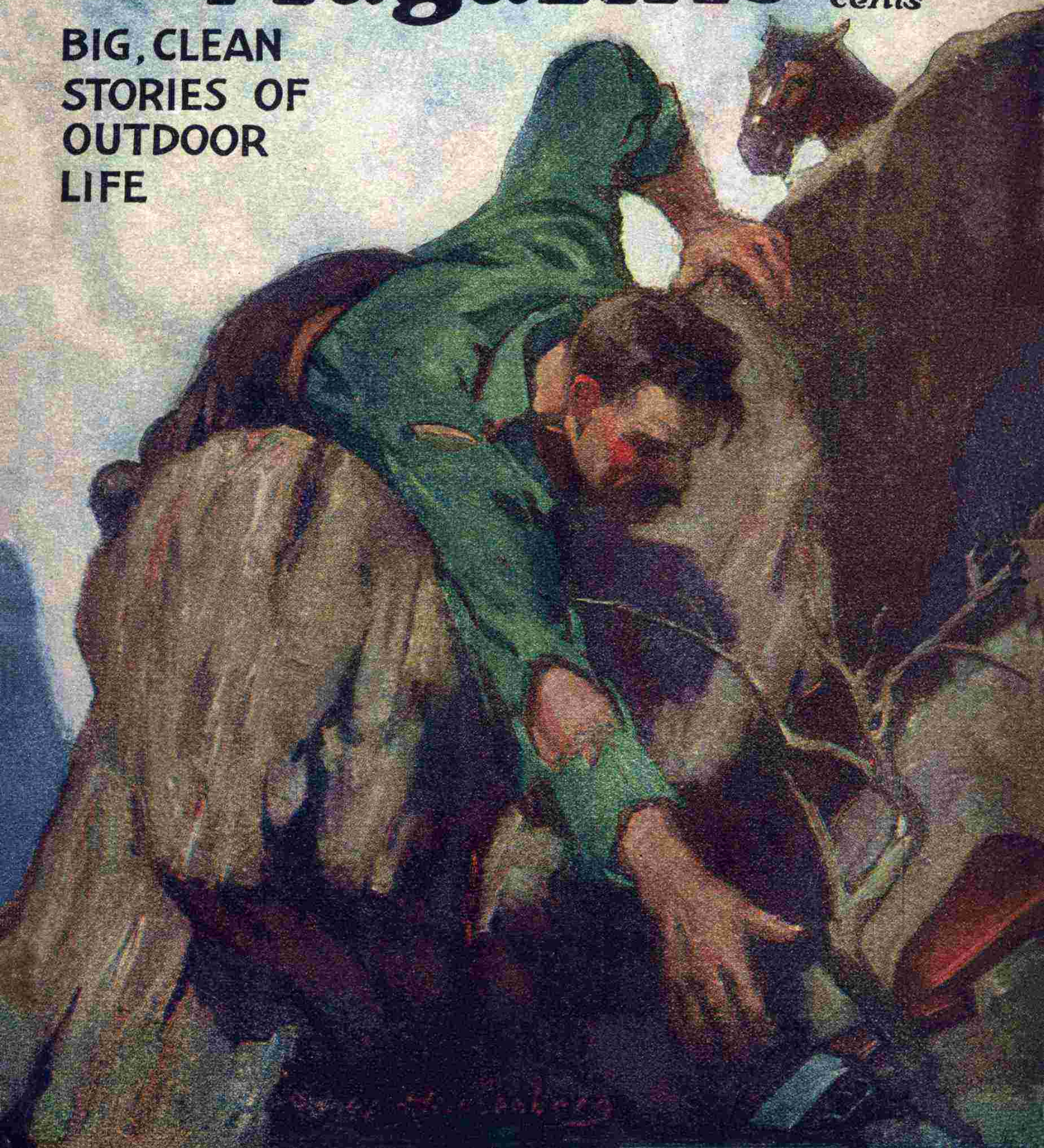
NOV. 7, 1925

Western Story Magazine

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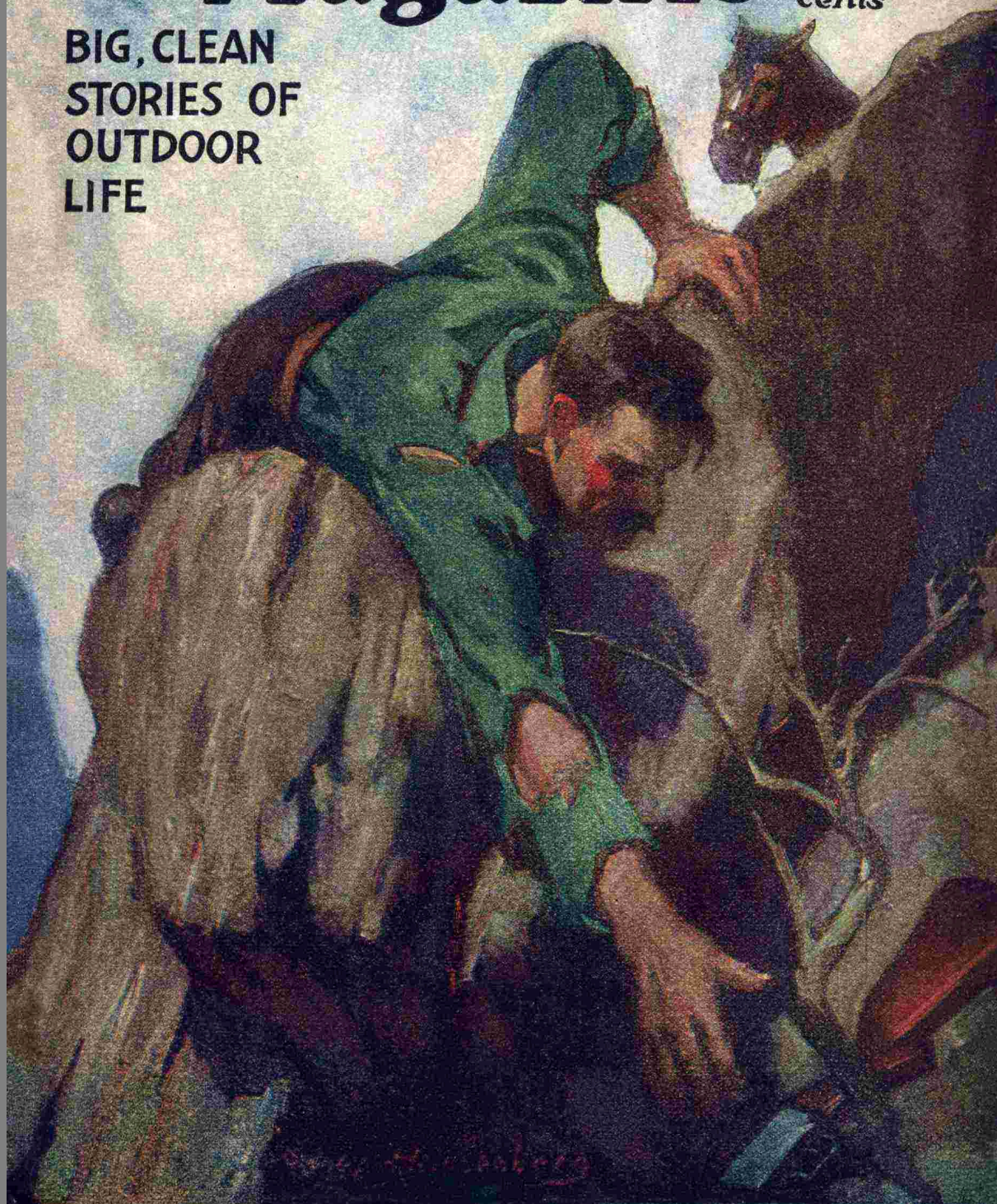
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BEYOND THE MIST ***



The Land Beyond the Mist

By Ernest Haycox

Author of "A Wooing in the Wilds," etc.

To keep out the misery of the eternal Oregon rain, Tom Cameron sang.

The heavens leaked with a persistence beyond the experience of the emigrant train. In seven days there had been no sun or sky above the tops of the fir trees. A heavy rolling mist hung over the line of wagons, shutting them out from the rest of the world as effectually as if they were in a fog bank at sea. Through this dark, lowering curtain came the steady deluge, soaking into the canvas schooner tops, wetting clothes, bedding, penetrating the food—reaching every fabric and every article. There was not an ounce nor an inch of anything dry in the whole weary column.

Cameron's pony walked as if he were a twenty-year-old nag. His flanks steamed and twitched, his hoofs were weighted down with huge lumps of gummy clay, his mane hung in separate twisted hanks. The animal was in no worse shape than his master, whose blanket capote dripped water like a colander sieve. Rivulets ran from the man's beaver cap across his wet face to a yellow mustache; fell from either side of this, like twin waterfalls, to the capote and thence streamed down the buckskin breeches in an ever-growing course, falling finally to the sodden, mud-sunken road in a tiny cascade.

"I'd be a danged sight more dry if I turned this hyar shirt inside out," muttered Tom, wringing his mustache free from its accumulation of water. Then he fell again to the song.

“Oh, Kernel Doniphan-o——”

It was in the late fall of '48, and these twenty wagons were traversing the Barlow Road over the Cascades to the valley of the Wallamet. The trail ended for them after a long, long journey. They had started from Independence, Missouri in April and it was now November. In the beginning, it had been a hundred wagons trekking across the vast prairie lands, following the plainly marked, deeply rutted Oregon Trail. At Fort Hall many months later the greater part of the caravan turned south for California and gold while the rest followed the older road to the Columbia and the old Wish-Ram villages at the Balles. Here they split again, part rafting down the bitter-cold river to Fort Vancouver, the rest coming over the new Barlow Road.

The patient oxen pulled at the traces, slipping and sliding in the muck. The bull whips whistled and cracked. Somewhere ahead of Tom Cameron the lead wagon groped in the mist seeking the road through the everlasting, dismal firs. The cattle herd was equally lost in the mist behind. It was all a confusion of noises, overborn by the clack and clatter of vehicles and the incessant pattering of the rain. The wailing of infants came up to him from many a direction, mingling with the shouts and epithets of the drivers. A brave pioneer woman in some distant schooner was singing a hymn:

“Bless'd be the land of plenty——”

It was a stirring tune and an inspiring thought, yet the woman's voice cracked in the middle of the verse and went down a-wailing. Ah, it was weary and heart-breaking, this last stage of the trip! Where was the promised land, the lush meadows free for the preempting, the bountiful game, the smiling sun? Had they come so far to find so poor a welcome? Better by far the fever and ague of Missouri, infinitely better the crowded, dearer land of Iowa.

Off to the right boomed the turbulent Clackamas. Tom Cameron wrung his mustache again and pulled a little aside to allow another horseman passage room. It was “Old Man” Follett, holding a dripping hand to a Websterian brow. The elder's face formed an incongruous appearance. A

bulging upper part harbored a pair of sweet, candid blue eyes, complemented by an undershot bull-dog jaw covered with stubble.

“By Godfrey, Tom, ain’t there any sun in this cussed land?” A linsey woolsey coat hung like a meal sack from his shoulders. “My fambly’s all got chills. I ain’t been dry fer a week. Ef we don’t find Oregon City mighty soon thar’ll be some buryin’ to do.”

“What’s Captain Bell say?”

“Shucks, Tom, he ain’t no wiser nor you and me. Dang, sometimes I wish I was back in old Illinois. Ef I don’t find good land here I reckon the missis won’t ever look me in the face again.”

A lank Missourian shouted from his wagon seat. “Land o’ plenty, hey? Thunder, I’m ready fer the turn around! I’d like to git ahold of the alligator who guv me the idea of leavin’ St. Louis! I’d put his haid in a tub o’ water an’ see how he liked drownin’. Got a chaw?”

Old Man Follett moved on. “No, I ain’t. Ain’t been up to our wagon for a couple days, Tom. Another scrap with Susie? Waal, I reckon I wouldn’t blame anybody fer quarrelin’ this weather.” He was lost the next minute in the fog, leaving the younger man silent. There was no longer any savor in singing the song about Colonel Doniphan. The misery of the dank, skin-creeping atmosphere worked on his nerve. A draggled sight he made, but no sorrier than any other of the train. There was no laughter throughout the whole caravan; the flame of anger and personal grievance had burst out continuously in the past week. Elders were bickering over directions; young men going at it rough-and-tumble fashion behind the cattle herd where there was no hindrance to gouging or heel and toe. The Emory boys bullied all the rest. Tom Cameron pulled at his mustache and was warmed by a persistent anger.

The horse started and wheeled, plunging against the Missourian’s wagon. Cameron brought up and turned to see the dripping face of an Indian buck poke through the vine maple, stare a moment, and disappear. He spurred the horse in pursuit, but the underbrush was too heavy and, recollecting a clearing a short distance back which seemed to promise entrance into the soaked woods, he swung around and galloped down the line of schooners. The coast tribes, he had heard, were not openly hostile. It paid, however,

always to keep on the alert. One Indian might mean a whole band of warriors waiting at some convenient ambush.

So thinking, he edged between bushes and wagons, the horse sliding in the mire. Of a sudden the brush dropped back into the mist and a bare foreground loomed up ahead. Turning, horse and rider were immediately isolated from the column. The grind and clatter advanced out of the haze, witness to the proximity of people; a driver spoke to his oxen in tones that boomed up to Cameron like a gun shot; and yet there was not a single glimpse of movement to be seen through the uncanny pall. The rain beat slantwise against him, redoubled in force. Then the horse stopped and a young man in homespun, hatless, dashed through the mist, closely followed by a mounted trio. The young fellow pulled up directly before Cameron with something like a gasp of relief. Upon sight of this the horsemen came to a sharp stop.

“Oh, you’re hereabouts, huh?” grunted the foremost. A scowling chap, he was, with a black cowlick roaming below the brim of his Missouri hat and dividing a narrow forehead. It was a dark face with a broad nose and thick, mobile lips—handsome in a way and possessing, when broadened into a smile, an undoubted attraction for women. It was otherwise with the men of the train, who saw only the danger signs in the ill-disciplined features. They left “Hank” Emory, leader of the three Emory boys, alone. The other two were lesser copies of the older brother, with much the same sullen expression, the same pouting lips and depth of chest.

“Tom,” said the young fellow, panting. “They’re pickin’ on me ag’in.”

“I’ll teach you to stand in my road!” cried Hank Emory, swinging down from his saddle. “Make a monkey out o’ me, huh?”

The first rule of frontier existence bids each man shoulder his own burden and go his own way; interference is not tolerated save as it comes by request. Here was a fight brewing between the bully and the other, with three men a-saddle impassively looking on. Emory was the heavier, the more dangerous, carrying with him the threat of many whispered brutalities. The chap facing him, while not much younger, seemed to be overawed by his reputation, but he shook his fist at the aggressor and appealed to Cameron. “I ran because all three were on me. You see fair play’s done, and I’ll fight. I ain’t afraid.”

Cameron nodded. "Clean fightin', Emory. No rough an' tumble."

Emory bore down upon his opponent viciously. There was a wild swinging of fists and the swift escape of breath. The lad's head snapped back and his hands went down; he was sprawled upon the wet turf with a hand to his stomach, writhing from side to side and sobbing like a child.

"Teach you manners!" yelled Emory, jumping forward. His hat fell off, and the mop of black hair waved wildly above the cowlick. The dark face was a seamed battleground of unrepressed fury. The two followers looked on with satisfaction. Tom Cameron brought his arm from beneath the capote, bearing a pistol.

"That's a plenty. Stop right thar."

Emory stumbled and brought up. "Plenty? Why, I ain't begun to teach him manners."

"You've had yore chance. That's plumb plenty. Git along and leave him alone."

"Maybe you'd like to try it out," said Emory, his eyes growing wider. "I've had my fill of yore ways. Climb down and risk a fall."

"When I fight with my fists I'll choose the place," replied Cameron. "Want to have somebody holding a gun on the rest of yore friends."

"Haw! Reckon yore back is made out o' the color yaller!"

"Thar'll be plenty o' time to decide that, too." Cameron pulled on his mustache until the skin grew white at the roots. "When I come callin' you'll git plenty chance to prove it."

From beyond the curtain of fog there emerged an unusual, disconcerting sound. It started with a distant shout from the front, half inaudible. The successive wagons picked it up, men and women alike adding their voices until, when the rear of the column was reached, it had become a mighty cry. Guns were fired, pans beaten. A woman screamed at the top of her voice:

"Glory, glory, glory! Oregon City! Praise God!"

The whole train resounded with the racket. Dogs were yapping; the cattle bawled out of fear. Some one took up a banjo and a popular tune trembled on a nasal voice while the strings made a flat, unmusical sound against the wet sounding board of the instrument. No matter, the song was sung with vigor, with a dozen voices picking it up.

Journey's end at last! Somewhere in front was the goal they sought, the shining reward that had held their courage night after night. Somewhere in the mist was Oregon City, the capital of the provisional government of Oregon, whose fame had lured them away from solid, comfortable homes and sent them all the way across the desert and over the mountains. Oregon and plenty!

Emory gave a last scornful glance at Cameron, sprang to saddle and tore through the fog, with his followers close behind. The fallen lad picked himself up and hobbled toward the train with an apologetic glance at his protector. "Reckon they'll be layin' for you now," he said. "There's been plenty of talk of a fight atween you and him. Whole camp speaks of it." He grew angry all in a moment. "Don't you let him swipe yore girl." Then, ashamed at the outburst, he broke into a trot and vanished.

The noise lost volume as if the wagons had of a sudden plunged over a precipice. Cameron urged his horse through the gray wall and found the cow herd driving in front of him; he pushed around it and alongside the train until the trees vanished once more. Through the mist he made out the spire of a church. A screeching of brakes and a cry of warning was born back down the line. "Watch fer the grade! Turn yore wagons out o' line at the foot o' the hill—goin' into camp!"

Cameron cut through and galloped along the side, descending a precipitous hill. In this pocket the fog thinned, and before his astonished vision stood the city mentioned by a thousand camp fires, the Mecca of the West.

One narrow street wavered between a double row of frame houses and cabins. To the left reared the gray shadow of the basaltic bluff the travelers were descending. On the other hand Cameron heard the sheeting sound of the rain pouring on a river. This, he decided, would be the Wallamet, for the roar of the falls, likewise famed in a hundred reports, thundered down the mud-bogged street. The houses were weather-beaten; across the false fronts of a few stood painted captions. A store, a grain shed, a pit saw and—witness of civilization's march—a newspaper. In all the length of the rain-drenched thoroughfare there was not a single sign of life. Cameron arrived at a glaring sign across one such false front announcing "Rickerson's Gen'l M'ch'd'se." On impulse he slid from the dispirited horse and entered the

place, slamming the door against the wind. There, at last, he saw people; one sallow woman stood behind the counter and fixed her snapping eyes at a tall, loosely jointed character against the wall.

“Honest?” she asked in a shrill voice. “Did I say you wa’n’t honest? But ef you was Governor Abernethy himself I wouldn’t give a nickel’s credit! How can a body make a living that a way? You are like every other shiftless man—wantin’ to run off to Californy and hunt gold while the crops go to pot here and poor wimmenfolk near starve!”

“Ma’m, I reckon my credit ought to be good. Yore husband never denied me what I needed. It’s only a sack o’ flour and a shovel I’m askin’.”

“To traipse off to Californy with. Fools’ gold! Stay home, I say, and grow wheat. That’s better’n gold. Ef my husband guv you credit, why, go an’ hunt him up.” She turned toward Cameron with a bitter smile. “Nary an able-bodied man left in Oregon any more since this turrible gold fever. January it was they discovered it at Sutter’s Mill. A bad January for Oregon. Women and children plowin’ the ground and the pesky Indians bolder’n ever. My husband gone off with the first, vowin’ to git rich. Not a word have I heard since. But what would you be wantin’?”

“Some tobacco,” said Cameron. “And a few sticks of that dry kindling wood by the stove, if I may.”

Overcome with a mumbled dissatisfaction, the lackadaisical fellow sauntered toward the door, shooting a glance at Cameron’s wallet when the latter paid for his tobacco. “I wouldn’t blame old Joe,” he called over his shoulder, “ef he never come back. Fer a wife you talk too much.” Then he slid hastily into the rain. Cameron, grinning, followed, tucking the kindling wood beneath his capote. He bent his head against a sudden onslaught of the storm and picked a way between the houses, now and then casting a wistful glance at the cheery lights that glowed from within. He passed the church a second time, and in five minutes was within the circle of wagons.

The site picked for this day’s rest was indeed a miserable one. Half of the ground was overflowing with water; the rest was ankle-deep in mud. One great blaze shot up from the center, and lesser fires struggled by several of the wagon tongues. The families for the most part stuck within the damp shelter of the wagons. The burst of excitement had subsided; not a song rose above the splashing rain; not a cheerful word could be heard save from one

small group of men near the big fire. There, surrounded by the newcomers, stood a plump, middle-sized gentleman, dressed in lawyers' black and with a gray-shot beard and beaming eye, sheltered under an umbrella. It was Abernethy, the governor.

"Rain? Bless you, rain does no harm in Oregon. But we have plenty of it. From October to May. As for land, God made the finest land and placed it in these valleys. But the best pieces near by are taken. You'll have to scout around, go farther into the bench, or beyond Chemeketa, six and seven days' riding."

Cameron rode on to a certain wagon in the circle where Old Man Follett struggled with a dying flame. He turned his mild eyes upward, and for the first time in all that two-thousand-mile trip the bitter discouragement was apparent in them. "Tom, whar's mercy in this world?"

Cameron drew out the handful of dry kindling and passed it to the elder. When he raised his head he saw Susan Follett watching through the front opening of the wagon. His mud-splashed countenance resumed some small measure of its gayety. Yet there was no answering smile on her clear, oval face; no welcome in the gray, spirited eyes; no encouragement in the manner she lifted her determined little chin. She was a frontier girl, born of a frontier family and having that fusion of elements in her blood which forever left its impress on all things coming under its influence. It was as if Tom Cameron had struck flint with steel and aroused a spark. Well, there was powder to put that spark in action. He was no lovesick swain. He compressed his lips and turned away.

The cause of the quarrel? Who might tell? Who knows the list of nine thousand and nine things, any one of which may be disagreed upon by man and woman. A thousand miles back on the Sweetwater there had been a quarrel and a reconciliation. But thereafter disagreement kept obtruding itself. Then Hank Emory, arrayed in his finest trappings, swirled up to pay court, leering at Cameron's impassive face. There would be trouble brewing there. Such a man was Emory that other men distrusted him, and women found something attractive in the rough coat of gallantry. Susan Follett spent one defiant glance at Cameron and chose to give the bully her attention. It was more fuel than Emory needed to augment his overbearing attitude.

The fire guttered in the wind and took fresh life from the dry kindling. Follett shielded the blaze with his coat. "I darn near got my bellyful of misery. I ain't no glutton fer such punishment. Whar's all this good land, eh? Tom, somebody's stretched the truth. I might have known." He drove two sticks into the ground and fashioned a crane. "Susie, pass out the big kettle."

There was a splashing of mud and the profane shouts of men; through the downpour appeared Emory and his brothers. The horses reared and sat wildly on their haunches. Follett muttered his disapproval. Cameron moved not an inch.

"Wet weather, wet weather!" cried the leading Emory. "Didn't I tell you Californy was yore proper station? Thar's gold and sun to be had."

"Tarnation!" muttered Follett. "Do ye take me for an old fool?"

Emory guffawed and favored Cameron with a sharp, sudden look of malice, then doffed his hat in a gesturing circle to Susan Follett who once more appeared at the front oval. "Lady, it's shore damp for purty faces."

She smiled. Cameron, looking up, saw that the smile was a little pinched about the corners of the mouth. Her answer, though welcoming, lacked warmth. Any less obtuse individual than Hank Emory might have noticed it. But he grinned broadly and swung nearer the wagon. "Well, yore at the end of the trip, Susie. Ain't it about time fer an answer?"

Follett started up with a burning stick in his fist. "Susie?" he said softly to Cameron. "Thar's liberty for you."

Cameron laid on a restraining hand. "Let it run a little longer," he counseled, and pulled at the yellow mustache.

The girl shook her head and seemed to draw away. "Mister Emory, aren't you a little hurried?"

"Haw! That's the same song you guv me last time. I ain't to be put off. Hyar I be, a two-fisted fellow, good enough for a lot of women. Ain't I good enough for you? Sartain, I can fight harder'n that fruz-faced Methodist stickin' so close to yore paw."

"Reckon that's a point to be settled now," broke in Cameron, handing the reins of his animal to Follett. The scene had attracted attention, and the quick dismounting of Emory brought a dozen of the younger men up on the rush. "It was sort of agin' my principles to fight in the train," continued

Cameron. "Thar was trouble a-plenty. We're camped now and it don't matter."

Emory jeered, "Nice boy, nice manners," and looked around for his brothers. They had been edged away by the spectators, so he shoved his burly head between his shoulder blades and began weaving his fists. "I'll tan you! The devil with sech nice ways."

"Any way goes," countered the other and stepped swiftly aside. Emory rushed in with the black, curly poll pointed like a battering ram. Cameron was not to be deceived; he saw the little red-rimmed eyes peering up at him, waiting for a slip off guard. A fist whirled out, grazed Cameron's chest and passed on. For so heavy a man the braggart worked lithely. He was about in a moment and charging again, this time upright, both arms flailing. Cameron stumbled in the mud, caught desperately at one of those arms and, going down, pulled his opponent along.

It made a weird, unbelievable scene with the rain falling in a never-ending downpour, and the ground six inches deep in muck. The crowd stood closely about and yelled. Follett clung to his club; the fire was trampled out and the ashes smoked dismally. Governor Abernethy had advanced with the rest and stood foremost, the umbrella shielding the lawyer's black coat, watching the battle with humorous eyes. "This," he said to Follett, "is a peaceful land. Most of our quarrels have to be imported from Iowa and Missouri." From her vantage point on the wagon Susan Follett stared in alarm, fists clenched and body moving unconsciously with the fighters. When Cameron went down beneath the braggart's weight she struck the wagon seat with her knuckles and cried "Tom!"

But Tom was buried too deeply in the mud to hear. The stuff covered both men from head to foot. Neither could get a grip and hold it. Time and again blows were launched which missed and landed in the gumbo. The braggart churned both feet to get a better position, lost his balance, and went rolling. The lanky fighter found his opportunity at that moment, got to his knees and fell astride Emory, seizing the black hair. That brought a roar of delight from the crowd. Emory's head sank down until a yell of fear bubbled out of the muck. Cameron swayed in his improvised saddle, raised the braggart's head for the moment and recited a short apology. "Say it after me; I beg the lady's pardon fer causin' so much trouble."

“The devil——”

Down went the head until a geyser of water shot up and a strangled cry emerged. Cameron yanked the poll up a second time. The apology was offered in wheezing syllables. Cameron released his grip, sprang up and watched for further aggressiveness. Emory was in no condition to do added damage. His mouth and eyes were plugged and plastered; not until some kind one thrust him through the crowd to his brothers could he find his bearings.

Cameron was not in much better shape. The governor’s eyes beamed. “Looks like you were an alligator from some Louisiana swamp. I’ve seen much fighting but your style is most entertaining and least sanguine.”

It furnished a moment’s diversion in a dreary day and put the people in higher humor as they plowed off to their respective wagons. Follett pointed to the creek. “Reckon you’d best hunt out a quiet spot and take a swim, Tom.”

From the wagon’s seat came a bitter voice. “You bully! Do you think a fight settles anything? Shame for such a disgraceful scene! If it were me I’d be hiding my face!”

Cameron met Susan’s disapproving eyes and slapped a hand to his countenance, wiping off some of the mud. “Ain’t it hid?” he asked. “Durned if I don’t think so.”

“Shame on you! If I were a man I’d——”

“Be fightin’ too,” finished Tom grimly. “That’s the best thing you an’ I do.”

“Susie, git back in that wagon,” ordered Old Man Follett. “When it comes time for womenfolk to mix in men’s doin’s I’ll say so.” He watched his daughter’s head disappear and turned with a pessimistic gesture. “Waal, now, whar are we? All the best land gone hereabouts. Another week’s journey in this cussed weather an’ no prospect then of hittin’ the right place. I’m an old fool.”

Tom picketed his horse and waded through the rain. The creek left the wagons and dropped over a rock declivity to the river. At the mouth was a kind of cove with the rain fog curtaining it from the houses. Cameron stripped and washed his buckskin suit. A half hour later he was in the street

again, wringing wet but at least clean. There was a stove in the store he had first entered, and toward this he moved.

“Hey, pardner, wait a minute.”

He turned upon a figure sloshing through the mud. When the man was nearer, Cameron saw it to be the same individual he had met in the store arguing with the woman; tall, loose-jointed, stubble-faced and with a chaw of tobacco bulging in one jaw.

“Have some? Waal, say, I see you’re from the wagon train. Reckon you’ll be lookin’ fer land. Mebbe Abernethy’s done told you it’s harder pickin’ than it used to be? Shore it is. You’ll be travelin’ plumb past Chemeketa—mebbe even as fur as the Calapooia range, afore you find anything onless yore real lucky. I’m an old-timer hyar, and I know a smart leetle valley that ain’t on the main traveled way. ’Tain’t but two days’ travel from hyar, to’rd the Cascades. Fine red-shot soil. Grow anything. Injuns thar, but a decent show of spunk’ll keep ’em humble.”

“How is it you’re not on this piece?”

“I’m fer Californy as soon as I c’n get a grub stake. That cussed woman won’t trust me fer a nickel’s wuth of anything, and I’m busted. Was aimin’ to claim a section o’ that land—it’s two sections big about—but I’ll give you the location for twenty dollars cash, and ef that ain’t cheap as dirt then old Sam Warner’s Injun-crooked.”

The street echoed with shouting, the mud gurgled and splashed. Once more a stream of profanity, and then the Emory boys rode by. Hank Emory leaned in the saddle as he passed and stared at Cameron with his bloodshot little eyes, then at the tall old-timer. In a moment they were out of sight, the report of their progress still coming back.

“Mebbe you’d figger me not wuth my word,” put in Warner. “Waal, there’s George Abernethy now wuth his bumbershoot.”

The staid governor picked his way down the muddy thoroughfare. Warner raised an arm. “George, I’m talkin’ turkey to this young feller and I’d like yore say-so about me.”

Abernethy clapped Cameron on the back. “It’s our young fighter, isn’t it? Well, whatever Sam Warner tells you is so. There’s just one exception I make.”

“What mought that be, George?” asked Warner, shifting his chaw.

“When you are drunk you’re of no use to anybody.” And into a shop Abernethy turned, smiling.

“That’s right, that’s right, but I’m sober’n a judge right now. Just wish I had four bits fer a drink.”

Cameron made a swift decision. “Come into the store and show me the location. If it sounds good I’ll pay twenty for it.”

One hour later Cameron, dried and warmed, came out of the place possessing a rough chart of the hidden valley southeast of Oregon City. It was, according to Warner, not hard to find, but only off the beaten track of incoming settlers and hitherto undiscovered by them. A bowl of meadow and beaver dam land two sections in extent, roughly, and just big enough for two preemptions. Cameron’s and Follett’s. Cameron bent through the interminable drizzle to the camp. Night fell suddenly without the transition of twilight. A ring of fires swayed and guttered in the chilly gusts of wind. Old Man Follett still hung over his own blaze; Mrs. Follett and Susan were inside.

“Reckon our troubles are mostly over,” announced Cameron and shoved the map at the elder. “Hyars movin’ orders. We’ll start out first thing at daylight. Let the rest travel another week if they want. We’ll be settled in two days.”

They were up before dawn, groping through the rolling mist and shivering at the raw touch of clothes and harness. It still rained; the wind came in gusts from the river. Follett fumbled around the oxen with no single word of greeting. His heart had utterly deserted him. The womenfolk were within the sodden shelter of the wagon. In this fashion they pulled out of the silent ring and rolled down the main street, hubs deep in the mire. Cameron, rolling loosely in the saddle, felt his horse rise beneath him in fright. Up through the clammy wall shuffled a nondescript character, bowed against the elements.

“Reckoned you’d be startin’ real early.” It was Warner, and his tongue formed words clumsily. “I’m a durned fool. Got on a spree last night an’ sort of emptied myself of words. When I sobered I remember tellin’ three

fellers about this little valley. Location an' everything. Three brash young fellers, as I recollect, one of 'em purty heavy o' shoulder an' black-haired."

Cameron sat rigid. Treachery? What had Hank Emory done now? Only a fool would have slept so soundly through the night while any chance of crooked work were possible. He thwacked a hand against his thigh in self-anger. Warner spoke again.

"I'd hand back that twenty dollars, but she's plumb spent on grub. Funny now, how these fellers picked me up on the street and loaded me with rum. It shore looks like a deliberate job. But how'd they know I knew of any place? Waal, you travel on. I'm goin' after my hawsses. Reckon I'll guide you to that place and ef thar's trouble we'll have it out somehow. I ain't goin' to have you fooled out o' that location."

He disappeared, leaving Cameron to forge along with the wagon. The Emory boys, then, had paid sharp heed to Warner when they passed him the previous day. The bully's fertile, restless mind had noted the evident seriousness between the old-timer and Cameron; with the cunning of some Blackfoot spy he had found the rest by use of alcohol. Cameron knew he would stop at nothing, that he would bend heaven and earth to forestall the Folletts after suffering the check to his vanity. There was trouble ahead. The weary rider swung his hand to the cartridge belt. The oxen struggled up the narrow trail to the summit of the cliff while the sheeting thunder of Wallamet Falls enveloped the whole party. Warner galloped into view, his long visage set in a bilious line. "Bear off to left at the next trail!" he shouted. "Short cut. She'll be a leetle rough goin' but I jest now heard that them three fellers pulled out ahead of us. We got to overtake 'em."

All that had gone before was ease and comfort compared to this new route. Warner said it was an Indian trail. It was scarcely that. The oxen lumbered and plunged through the up-growing scrub bushes—salal, ironwood, grape and hazel—while the wagon top shook torrents of water from the fir boughs. They came to a hill and slid down side-wise with locked wheels, mud flying high. They fought across a swollen creek, the wagon and team drifting a hundred yards downstream before striking bottom. On the far side another dark forest engulfed them. Even the long-enduring Mrs. Follett cried out for fire and rest at this unprecedented misery.

But a kind of madness seemed to sway the men. They had gone beyond strict reason and traveled with that bitter decision which comes in company with desperate circumstances. The rain had numbed them beyond feeling; no situation had power to discourage them more than they already had been discouraged. Follett swung the bull whip and cursed at rare intervals. Cameron's sandy mustache drooped low; the man himself shivered with a queer kind of ague. He had not been dry for seven days on end, nor had slept under any shelter, nor eaten anything save jerked venison and chicory coffee.

Warner shoved them relentlessly. It was he who knew the fords, the trails, the easier grades. Noon came in this incessant downpour, but they kept their path. The women passed out lumps of pemmican. Cameron took his from Susan with a hand that shook like an aspen leaf in the wind.

"Tom, what on earth ails you? You're sick."

Warner said. "Tech o' chill. Sun'll dry him out."

"Sun! My Godfrey!" bawled Follett. "Does the sun ever shine in this country?"

They plunged into another creek, entered another forest, climbed and descended another hill. So ended that first bleak day which darkened and disappeared, leaving the fog and rain in undisputed mastery while the wind whipped through the tree tops and snapped branches all during the night. There was little sleep to be had. Before the first gray light they were in motion, following the monotonous winding of the road until, that mid-afternoon, the trees vanished; the rain died to intermittent showers and, far above, the sun struggled to pierce the clouds. Warner got from his horse and went to all fours, searching the ground. "Hyars whar the main road and the short cut come in. Lord cuss me ef them three fellers ain't ahead o' us! Fresh hoof prints, 'bout two or three hours old."

Follett snapped the bull whip, and the wagon went on, ponderous, creaking. "Up that thar hill!" said Warner and they climbed until they were lost in the mists. Stumps and logs ended. A green, lush orchard grass sprang beneath their feet at the summit like the nap on some massive carpet. "Down thar in the pocket," pointed the guide, "is the land. But hyars hoof prints ag'in. Them rascals air ahead of us shore enough. Ef they've staked corners I reckon we're beat. That's all's necessary."

Cameron mused. "If they've only been hyar an hour or two I doubt they'd stake corners. They ain't possessed with that much patience."

Doubt swayed the guide. He bit morosely into his tobacco. "But thar on the land. That's plenty. Possession's all ten p'int's o' the law, by gee. I'd be willin' to drive 'em off, but that'd git to Oregon City in no time and whar'd you be in law? I reckon we've lost the race. Waal, you foller me down the valley a week or so and I'll find you some land."

Cameron shook his head and stared at the billowing mist. Out of that pall emerged a dull echo of voices. "There they are," he murmured. "But they ain't the kind to set in one place very long. It ain't in their blood." He turned to Follett. "Reckon I'll deal a hand in this game. We're a-goin' to scrap fer what we want. Drive yore wagon down the hillside until you strike the fog line. Jest let 'em see the wheels movin' and hear the team grunt. Then we'll keep goin' on around the rim until we strike a draw somewhars and drop out o' sight."

"What fer?" inquired Warner with a dubious expression.

"Strategy," replied Cameron. Follett spoke to the team and set the brakes. Down the wagon slid, with the younger man trotting in advance. As they descended, the fog thinned, and the ground below came into view until Cameron drew up his horse in plain sight of a gleaming green bowl's bottom with a creek brawling through it, half hidden by alders. By these alders flamed a fire. There were the Emorys.

Cameron wheeled his horse back into the fog and motioned for Follett to turn. The movement put the whole group out of sight once more, but the screaming brakes echoed from one side of the bowl to the other, as did Cameron's suddenly raised voice. "Beyond the draw!" he called. "We're on the wrong side of the hill! Into that big clearin'!"

Back to them came Hank Emory's exultant shout. "Go on," directed Cameron in a lower tone. "Let 'em shout. They'll be doin' some figgerin' in a while."

And so they were. Hank Emory watched the wagon snake back to the fog-hidden upper regions until there was left only the intermittent sight of a wheel rolling mysteriously, independently along, or the queer spectacle of eight dismembered oxen legs trampling forward. Then these signs too were lost. But the noise was plain enough, receding toward a not far distant head

of the valley where another low pass apparently gave entrance into another stretch of open land. Emory heard Cameron's "Beyond the draw!" and muttered a doubtful curse into his beard. "Whar's that fool goin' now? This are the place."

"Mebbe it ain't the only good land in these parts," offered one of the brothers.

"Or mebbe that drunk fool give us wrong directions arter all," added the other.

Hank trudged a ring around the circle, growing more savage of temper at each pace. "Ef I thought so I'd kill him." He cocked his head forward, but the wagon was seemingly quite far off, crawling over the pass, and he stared at the blank white wall with a growing ugliness. "Sakes, I ain't no cussed farmer! Ain't doin' us any good hyar ef they didn't mean to settle it fust. That old fool said this war the only good spot in the hull country."

A quiet suddenly descended; the booming of the wagon wheels no longer blended echoes with the clattering brook. One lone shout wafted back and that was all. Hank Emory halted dead in his tracks. "I ain't to be fooled!" he burst out. "Durned ef I'll be given the haw haw. Git yore horse, we're goin' after 'em."

"What fer? Most likely they'll be squattin' on a piece afore we c'n stop 'em."

"Then we'll drive 'em off! Didn't I say I'd get square fer that drubbin'—an' fer bein' used by that china-faced girl?" The trio tore away from the blaze; hoofs drummed in the sodden earth; the report trembled and vanished.

It all happened swiftly. At one time they were about the fire; next instant they were gone. The flame leaped and swayed, the creek worried and foamed at the gravel banks. Then, without sound or warning Cameron and Warner slipped through the befogged alders to the fire. Warner's face relaxed. "I reckon that's what you mought call playin' tag. They're off an' we're on. Ef they ain't staked corners we're in lawful possession. I'll mosey out and drive somethin' in the corners ef thar ain't nothin' now, which will natcherly do it up brown fer us." He galloped away.

On another corner of the compass echoed the wagon again, not far off and coming rapidly to the urge of the bull whip. Cameron sang out,

“Straight ahead. Come along.” At intervals he repeated it to give Follett his bearings. In five minutes the vehicle dropped into view like some pioneer chariot descending from the skies, and lumbered up to the fire. Follett jammed on the brakes. “It’s gettin’ lighter, seems to me. Sun’s tryin’ to git through. Susie—maw—come out an’ git warm! Hyars a fire, and it ain’t rainin’ fer a minute at least.”

Once more the drumming of hoofs trembled through the mist. The trio were flying back. Tom Cameron slipped his revolver around and got from his horse. “Not yet. Back in the wagon, Susie. Thar’s apt to be a stray bullet or so in the next minute.”

“Tom—there’s no need of spilt blood. I’d rather give in and try another place.”

“Our own land? I give up nawthin’ to those sports.”

“Right,” agreed Follett, crawling from the wagon seat. “It’s time to git shet o’ that pack o’ trouble. Git me the buffler gun, Susie.”

There was a snorting of horses, a violent oath, and Hank Emory came to view as of old, his animal rearing wildly at the bit’s yank and sliding to a halt. The other two brothers trailed behind. The elder bully jumped from the saddle and stood before Cameron with his red-rimmed eyes growing bloodshot. “My land, Methodist, and I’ll tell ye to git off sudden.” He was shaking his head like an angry, uncertain bear.

“First come first served,” countered Tom.

“Which is us.”

“I guess not. Wa’n’t no sight of you when we came. Moreover we paid fair for the location.” Then he took a bold shot. “If you wanted it why didn’t you stick—why didn’t you mark the corners?”

“Hey?” shouted Emory. “Tryin’ to make a fool out of me, you ginger-bread dandy? I ain’t traipsin’ around lookin’ fer corners to mark. We war here fust and that settles it. You’ll go, and you’ll take yore friends to boot. Fool me? I guess not! Clear out!”

Cameron inclined his ear to some not-far-off sound. “When you stepped over that draw you abandoned this piece o’ land, leavin’ it unmarked. Whoever reached it next had fair claim to it. That’s us. Moreover we’ve got stakes out now on a couple corners for good measure. That settles it as far as preemption goes. We’re in possession lawfully and aim to stay.” As he

finished, Warner arrived and slid from his horse. “Found one nice little pile o’ rocks nigh to the summit and jest considered it as one of our corners. No sign of anything else. She’s yours lawfully.”

But Cameron had no attention for him. His eyes were upon Hank Emory, whose red lids squinted under the sudden rising fury. The black head dropped in unison with the gun arm. The brothers spread out fanwise.

“Ho!” yelled Follett and brought up the buffalo weapon. He was far too slow. Emory’s pistol was in the air, breast-high, when Cameron shot. There was no answering bullet; the leader of this boisterous group, bereft of his animal vitality, of his huge voice and scowl, fell like a sack of meal, with never a single word to announce his passing—a faint look of surprise on his face. The brothers stood irresolute, guns half out, covered by Warner and Follett. From the wagon Susan looked compassionately down at the dead man. “Tom, Tom—I’ll be forever sorry!”

“No need to be. It’s been a long time brewin’, and somebody had to end it. ’Twas now or later; me or somebody else; this quarrel or another quarrel. The man was made for a sudden death.” He motioned to the remaining pair. “Pick him up and take him away. Reckon you’ll find it inconvenient to come back.”

They did as told, hoisting the body into the saddle and, supporting it between them, rode away into the mists.

As if by prearrangement the mists were suddenly shot with a gleaming light; a crack in the eternal fog widened and through it came a swift, momentary shaft of the winter’s sun. It flashed down on the heavy grass with all the verdant brilliance of an April day, twinkled in the brawling creek, sparkled in the drenched tree tops. That short bit of heat set the whole rolling valley to steaming and from the earth came a yeasty, humid, pungent smell. Follett turned his mild eyes up along the expanse of meadow with such an expression of confidence as had not been there since spring in Missouri. “Waal, hyar’s land good enough. And thar’s the sun.”

“Worth fightin’ for I guess,” stated Cameron a little dourly, and turned to Susan. “I been waitin’ for you to change yore mind back to where it used to be. If it’s the same story as it was yesterday I guess I’ll jest leave you folks and mosey along to Californy with the rest.”

“Why, Tom, are you blind?” Whereupon he grinned like a schoolboy and turned to the fire with a gesture of ambition. “Jest about, I guess. Well, dad, let’s get started on the cabin. It’d best be a double affair. Two families take up a lot o’ room.”

Transcriber’s Note: This story appeared in the November 7, 1925 issue of *Western Story Magazine*.

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